

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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ADAM BAUM,

Plaintiff,

COMPLAINT

-against-

ECF Case

THE CITY OF NEW YORK; JOSEPH PETRELLI;
UNDERCOVER POLICE OFFICER SHIELD NUMBER
228; P.O. JOHN DOES #1 and #2; Former Commissioner
DORA B. SCHIRO; Chief of Department EVELYN
MIRABAL; Warden ROSE AGRO; CORIZON HEALTH,
Inc.; JOHN/JANE DOES ##1-25; the individual defendants
sued individually and in their official capacity,

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to the Civil Rights Act of 1871, 42 U.S.C. §§ 1983 and 1988 for the defendants' commissions of acts under color of law in violation of plaintiff's rights under the Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States.

2. Mr. BAUM's complaint stems from incident(s) that began on or about September 27, 2011 and continued until on or about December 11, 2012. During the incident(s), Mr. BAUM was subjected to a false arrest, unlawful search and seizure, excessive force, denial of medical attention, an unlawful strip-search, malicious prosecution, deliberate indifference, unconstitutional conditions of confinement, and a denial of his constitutional, civil, and common law rights.

3. During the incident(s), Mr. BAUM was held as a pre-trial detainee at Rikers Island Detention Facility for approximately 442 days while the charges pended against him in the New York County Criminal Court and Supreme Court.

4. During Mr. BAUM's incarceration, he was denied access to psychotropic medications that he had been lawfully prescribed prior to his incarceration. He was forced to take an inadequate substitute medication and he was improperly tapered off of his medications.

5. Defendants' actions were contrary to law, contrary to sound medical practice, and contrary to the norms of a civilized society. This complaint, arising from these outrageous and unlawful acts, seeks compensatory and punitive damages, costs, disbursements, and attorneys' fees pursuant to applicable federal civil rights law.

JURISDICTION & VENUE

6. This action arises under the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §§ 1983 and 1988.

7. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343, and 1367.

8. Venue is proper pursuant to 28 U.S.C. § 1391(b) in that, *inter alia*, the events giving rise to the claim occurred in the Southern District of New York.

JURY DEMAND

9. The plaintiff demands a trial by jury on each and every one of his claims as pled herein.

PARTIES

10. Plaintiff ADAM BAUM is a citizen of the United States and a resident of Queens County. Until the time of his arrest, he was receiving SSI disability payments because of his inability to work. At the time of the complained of incidents, Mr. BAUM was detained at the Anna M. Kross Center (“AMKC”) at Rikers Island.

11. Defendant THE CITY OF NEW YORK (the “City”) is a municipal corporation organized under the laws of the State of New York.

12. The New York City Police Department (the “NYPD”) is the department of the City responsible for, among other functions, arresting persons for offenses and maintaining custody over such persons prior to their initial appearance in court. At all times relevant hereto, the NYPD, together with the City, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, the NYPD, together with the City, was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obeyed the Constitution and laws of the United States and the State of New York.

13. At all relevant times herein, defendant JOSEPH PETRELLI was employed as a police officer by the NYPD and was acting in the capacity of agent, servant, and employee of the City.

14. At all relevant times herein, defendant PETRELLI held the rank of detective.

15. At all relevant times herein, defendant PETRELLI’S shield number was 05002.

16. At all relevant times herein, defendant PETRELLI'S command was the Narcotics Borough Manhattan South.

17. At all relevant times herein, defendant UNDER COVER POLICE OFFICER SHIELD NUMBER 0228 ("U.C. 0228") was employed by the NYPD and was acting in the capacity of agent, servant, and employee of the City.

18. Plaintiff is unable to determine the actual name or rank of defendant U.C. 0228.

19. At all relevant times herein, defendant U.C. 0228's command was the Narcotics Borough Manhattan South.

20. At all relevant times herein, defendant P.O. JOHN DOES #1 and #2 were police officers employed by the NYPD and each was acting in the capacity of agent, servant, and employee of the City.

21. Plaintiff is unable to determine the actual names of P.O. John Does #1 and #2 at this time and thus sues them under fictitious names.

22. The Department of Corrections ("DOC") is the department of the City responsible for, among other functions, operating a number of detention jails. Correctional Health Services ("CHS") is a unit within the New York City Department of Health and Mental Hygiene ("DOHMH"), a City agency. DOHMH, through CHS, is responsible for the provision of medical and mental health care and services to prisoners confined in the City jails, including AMKC. DOHMH/CHS, contracts with Corizon Health, Inc., a private corporation, to provide such care and services. DOC and DOHMH/CHS, through their senior officials at the central office and in each jail facility, promulgate and implement policies, including those with respect to the provision of medical and mental health care, and access to medical and mental and other program services

mandated by local law and court orders. In addition, senior officials in both DOC and DOHMH/CHS are aware of and tolerate certain practices by subordinate employees in the jails, including those that are inconsistent with formal policy. These practices, because they are widespread, long-standing, and deeply embedded in the culture of the agency, constitute unwritten DOC and DOHMH/CHS policies or customs. DOC and DOHMH/CHS are also responsible for the appointment, training, supervision, and conduct of all DOC and DOHMH/CHS clinical personnel, including the defendants referenced herein.

23. On information and belief, at all times relevant hereto, defendant CORIZON HEALTH, INC. (“Corizon”) provided medical and mental health services to prisoners in DOC correctional facilities, including AMKC. In carrying out its duties, Corizon was required to ensure that the personnel it employed at AMKC complied with all DOC and DOHMH/CHS policies, procedures, directives, and protocols in addition to all relevant local, state, and federal statutes, and regulations.

24. At all times relevant hereto, defendant DORA B. SCHRIRO was the Commissioner of the DOC, acting in the capacity of agent, servant, and employee of defendant City, within the scope of her employment as such, and acting under color of state law. On information and belief, Schriro, as Commissioner of DOC, was responsible for the policy, practice, supervision, implementation, and conduct of all DOC matters and was responsible for the training, supervision, and conduct of all DOC personnel, including the defendants referenced herein. As Commissioner, Schriro was also responsible for the care, custody, and control of all inmates housed in the Department’s jails. In addition, at all relevant times, Schriro was responsible for enforcing the rules of the DOC, and for ensuring that DOC personnel obeyed the laws of the United States and the State of New York.

25. At all times relevant hereto, defendant EVELYN MIRABAL was the Chief of Department of DOC, acting in the capacity of agent, servant, and employee of defendant City, within the scope of her employment as such, and acting under color of state law. As Chief of Department, she was the highest-ranking uniformed member of the department, and was responsible for the supervision, oversight, and discipline of the uniformed security staff in all the DOC jails. She was also responsible for the care, custody, and control of all inmates in the DOC jails.

26. At all times relevant hereto, defendant ROSE AGRO was the Warden of the AMKC within DOC, acting in the capacity of agent, servant, and employee of defendant City, within the scope of her employment as such, and acting under color of state law. As Warden, her responsibilities included the care, custody, and control of all inmates, as well as the supervision of all staff, in the AMKC.

27. Defendants Schriro, Mirabal, and Argo (collectively “the Senior Corrections Defendants”) were, at all times relevant hereto, senior officials who exercised policymaking, supervisory, and disciplinary authority on behalf of DOC.

28. On information and belief, at all times relevant hereto, defendants JOHN/JANE DOES ##1-25 (“the Medical Defendants”) were physicians, physician’s assistants, social workers, mental health clinicians, and other medical and mental health providers, employed by the City or Corizon between September 27, 2011 and December 11, 2012, who were responsible for the medical care of inmates on AMKC on those dates and/or participated in, and/or had knowledge of and failed to intervene in, the denial of adequate medical care to Mr. BAUM that took place on those dates. Their duties included but were not limited to caring for all patients in their assigned areas at Rikers Island, which included but was not limited to cell visits, physical, and psychological

examinations, identification of acute and chronic conditions, design and implementation of appropriate plans to facilitate care, provision of medications, provision of psychiatric and/or psychological counseling, coordination of treatment with other providers at Rikers Island, direct oversight and supervision of nursing staff, and/or provision of emergency medical care. At all relevant times hereto, the Medical Defendants were acting under color of state law and within the scope of their capacities as agents, servants, employees, and/or contracted personnel of defendant City. Their responsibilities were required to be carried out in a manner consistent with the legal mandates that govern the operation of City jails, including DOC and DOHMH/CHS policies, procedures, directives, and protocols, in addition to all relevant local, state, and federal statutes and regulations.

29. Defendants JOHN/JANE DOES ##1-25 are sued under fictitious designations because plaintiff has not been able to ascertain their names and, where relevant, shield numbers, notwithstanding reasonable efforts to do so.

30. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

Arrest and Prosecution Facts

31. On September 27, 2011, at approximately 4:00 p.m., plaintiff ADAM BAUM was lawfully at and in the vicinity of the Northwest Corner of Union Square Park, New York, New York.

32. Defendants PETRELLI, U.C. 0228, and P.O. JOHN DOES #1 and #2 were part of a team of police officers conducting a “buy and bust operation.”

33. At that time and place and without any probable cause to do so, one of the defendant officers came up to Mr. BAUM and demanded that Mr. BAUM sell them narcotics. Mr. BAUM denied the individual defendant's demand and informed him that he did not sell narcotics.

34. Shortly thereafter, at that time and place and without any probable cause to do so, one of the defendant officers came up to Mr. BAUM and expelled pepper spray into his eyes and tackled Mr. BAUM to the ground. Thereafter, while Mr. BAUM was on the ground, one of the defendant officers placed his knee into his back and placed excessively tight handcuffs about his wrists.

35. Each of the defendant officers were present during, and participated in, Mr. BAUM'S arrest.

36. After arresting him, a number of the defendant police officers placed Mr. BAUM into a waiting police vehicle, in which he was driven around – handcuffed behind his back the entire time – for at least 1 hour.

37. Mr. BAUM was eventually transported to an NYPD precinct in New York, New York and booked on charges of criminal sale of a controlled substance in the Third Degree (N.Y. Penal Law § 220.39).

38. While Mr. BAUM was at the NYPD precinct, he was subjected to an unlawful strip search in that officers directed him to lift up his shirt, drop his pants and underpants, lift up his genitals, turn around, squat, and cough. Upon information and belief, this strip search was carried out in an unlawful manner because it was in the presence of unnecessary NYPD staff and/or other prisoners.

39. Mr. BAUM complained to the defendant police officers that the handcuffs were excessively tight and that he needed them to be loosened. The defendant police officers ignored Mr. BAUM's pleas to loosen the cuffs.

40. Mr. BAUM complained to the defendant police officers that his eyes were red, irritated, and in excruciating pain. Mr. BAUM demanded that he be provided medical attention for the mace that ha been discharged into his face. Despite this plea for medical attention, Mr. BAUM was not provided with any treatment for his eyes until several hours after the arrest.

41. Mr. BAUM was thereafter taken to Bellevue Hospital Center where he received treatment for the injuries he sustained during the unlawful arrest.

42. Mr. BAUM was eventually brought by the defendant police officers to Central Booking at 100 Centre Street.

43. A felony complaint was filed against Mr. BAUM charging him with Criminal Sale of a Controlled Substance in the Third Degree (N.Y. Penal Law § 220.39).

44. After more than 24 hours, Mr. BAUM was arraigned on the felony complaint and bail was set in the amount of 100,000.

45. The NYPD has formal policies, contained in its Patrol Guide, by which it authorizes strip searches to be carried out in a private manner. The NYPD has formal policies, contained in its Patrol Guide, by which it authorizes the discharge of mace to be carried out in a specific manner under specific guidelines.

46. This notwithstanding, on information and belief, the NYPD ahs, and had at the time of the incident giving rise to this Complaint, a *de facto* policy and practice of strip searching

prisoners, and discharging mace in manners other than those specified in the Patrol Guide or NYPD directives.

47. Upon information and belief, while Mr. BAUM was incarcerated at the NYPD precinct, at Bellevue Hospital Center, and in New York Central Booking, awaiting arraignment, the officers who arrested him, acting in concert, and pursuant to a conspiracy, falsely and maliciously told the New York County District Attorney's Office that claimant had committed various crimes, and based on the officers' false allegations, the New York County District Attorney's Office prosecuted Mr. BAUM in Court under Criminal Docket #2011NY070566.

48. Upon information and belief, the officers who arrested claimant falsely testified before a grand jury or maliciously withheld relevant information showing that Mr. BAUM was innocent of all charges. Based upon this false testimony, Mr. BAUM was indicted and prosecuted under Indictment Number 04684N-2011.

49. Thereafter, all charges were dismissed and sealed against Mr. BAUM on December 11, 2012.

50. Mr. BAUM was detained at Rikers Island from September 27, 2011 until December 11, 2012.

51. The above-stated malicious prosecution was initiated without probable cause to believe that the prosecution would be successful and without regard to Mr. BAUM's innocence.

52. The above-stated malicious prosecution was initiated with malice because it was not based upon probable cause.

53. The above-stated malicious prosecution terminated in Mr. BAUM's favor on December 11, 2012 when the charges were dismissed and sealed against him.

54. The above-stated malicious prosecution caused a significant post-arraignment liberty restraint on Mr. BAUM, namely the 442 days that he spent incarcerated.

Department of Corrections Facts

55. On September 27, 2011, Mr. BAUM was admitted to DOC custody in lieu of posting bail of \$100,000.

56. At the time of his arrest, Mr. BAUM was 41 years old. He suffered from depression, anxiety, and schizophrenia.

57. Mr. BAUM indicated to the DOC staff upon his admission to DOC that he was currently prescribed XANAX and SEROQUEL for his mental health concerns. Mr. BAUM was therefore in obvious need of specialized medical and psychiatric treatment.

58. Despite Mr. BAUM's psychotropic needs, he was denied access to his XANAX and was not immediately provided with his SEROQUEL.

59. Based upon the DOC and/or DOHMH/CHS policy, Mr. BAUM was not permitted to receive his medically prescribed XANAX. Instead, Mr. BAUM was forced to withdraw from the XANAX with another psychotropic medication, LIBRIUM for a period of one-week.

60. Mr. BAUM consistently informed the staff at Rikers Island that LIBRIUM was not the proper medication to withdraw from XANAX and that KLONOPIN or a gradually tapered dosage for XANAX was the proper way to withdraw from XANAX.

61. Despite this request from Mr. BAUM, the Medical Defendants insisted on providing Mr. BAUM with a one-week dosage of LIBRIUM for withdrawing from the XANAX.

62. As a result of this withdrawal, Mr. BAUM suffered from anxiety, depression and stress for the entire duration of his incarceration at Rikers Island. Mr. BAUM's symptoms exhibited as pacing, talking to himself, and panic attacks.

63. Upon information and belief, in part, as a result of the inadequate medication provided to Mr. BAUM, on or about September 22, 2012, he slipped and fell inside of a shower room in AMKC and suffered two lacerations to his eyebrow that required emergency medical treatment.

64. As a result of all the foregoing, Mr. BAUM suffered physical injuries, emotional distress, embarrassment, humiliation, anxiety, deprivation of his liberty and a violation of his constitutional rights and diverse and specific monetary damages.

NOTICES OF CLAIM

65. Notices of Claim were filed in this matter on January 17, 2013 and September 27, 2012.

66. A hearing pursuant to General Municipal Law § 50-H was held on March 25, 2013.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983 AGAINST ALL DEFENDANTS)

67. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

68. By reason of the foregoing, and by falsely arresting Mr. BAUM, unlawfully searching and seizing him, exerting excessive force against him, unlawfully strip searching him, maliciously prosecuting him, denying him access to adequate medical and mental health care, failing to provide medical and mental health treatment, and/or exhibiting deliberate indifference to Mr.

BAUM's rights by not acting on information which indicated that unconstitutional acts were occurring, the individual defendants deprived Mr. BAUM of rights, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. § 1983, including, but not limited to, rights guaranteed by the Fourth, Eighth, and Fourteenth Amendments of the United States Constitution. The individual defendants acted at all relevant times hereto willfully, wantonly, maliciously, and/or with such reckless disregard of consequences as to reveal a conscious indifference to the clear risk of serious injury and pain and suffering to Mr. BAUM that shocks the conscience. As a direct and proximate result of these violations, Mr. BAUM's constitutional rights, he suffered the damages hereinbefore alleged.

69. The Senior Defendants knew that the pattern of abuse and neglect against mentally ill inmates described above existed on the Rikers Island mental health units prior to and including the time of Mr. BAUM's mistreatment. They created or allowed the continuance of the custom under which mentally ill inmates were illegally and excessively denied proper psychotropic medications. Their failure to take measures to curb this pattern of abuse and neglect constituted acquiescence in the known unlawful behavior of their subordinates and deliberate indifference to the rights and safety of the inmates in their care and custody, including Mr. BAUM. The Senior Defendant's conduct was a substantial factor in the continuation of such abuse and neglect and a proximate cause of the constitutional violations alleged in this complaint and of Mr. BAUM's resultant damages, hereinbefore alleged.

70. The Individual Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as NYPD, DOC and/or DOHMH/CHS officers, agents, employees, and/or contracted personnel. Said acts by defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. Said defendants acted willfully, knowingly, and with the specific intent to

deprive Mr. BAUM of his constitutional rights secured by 42 U.S.C. § 1983, and by the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution.

71. Defendant City, through NYPD, DOC, and DOHMH/CHS, and Corizon, through its officers and employees, acting under the pretense and color of law, permitted, tolerated, and were deliberately indifferent to a pattern and a practice of abuse and neglect at Rikers Island by DOC and DOHMH/CHS officers, employees, agents, and contracted personnel at the time of Mr. BAUM's mistreatment. This widespread tolerance of abuse and neglect constituted municipal and corporate policy, practice, and custom, and was a proximate cause of Mr. BAUM's mistreatment, and plaintiff's resultant damages, hereinbefore alleged.

72. At all times material to this complaint, the defendant City, acting through the NYPD and the individual officer defendants, had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

73. At all times material to this complaint, the defendant City, acting through the NYPD and the individual defendants, had *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise or discipline employees and police officers, and of failing to inform the individual defendants' supervisors of their need to train, screen, supervise, or discipline said defendants.

74. By permitting, tolerating, and sanctioning a persistent and widespread policy, practice, and custom pursuant to which Mr. BAUM was abused and neglected, the City and Corizon have deprived Mr. BAUM of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, secured by 42 U.S.C. § 1983 and the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution.

75. As a direct and proximate result of the misconduct and abuses of authority detailed above, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, disbursements, and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper,
including injunctive and declaratory relief.

DATED: Brooklyn, New York
September 29, 2014

/s

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